

THE NCA HUB

Examination Preparation

CANADIAN EVIDENCE LAW

COMPREHENSIVE STRATEGIC NOTES

Based on: Stuart, Tanovich & Dufraimont — Evidence: Principles and Problems, 14th ed. (Carswell, 2024)

Revised April 2025 Syllabus | Exam Date: April 14, 2026 (Midday)

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How to Use These Notes

These Strategic Notes provide complete, exam-focused coverage of every testable topic on the NCA Canadian Evidence Law syllabus (Revised April 2025). They function as your primary open-book reference during the examination and your structured study tool in the weeks beforehand.

PARAMETER	DETAIL
Format	Open-book. Hard copy only — no electronic devices, laptops, tablets, or phones.
Duration	3 hours (180 minutes)
Pass Mark	50% — pass/fail grading system
Exam Date	April 14, 2026 (Midday start)
Structure	Multiple choice questions (approx. 30 × 2 marks = 60 marks) + short-answer questions (approx. 40+ marks). Format varies by session.
Marking Approach	Issue identification → rule with authority → application to facts. Bare conclusions score zero. Cases must be cited.
Civil vs Criminal	30–40% of questions involve civil evidence. Rules differ. Always flag the regime.
Textbook	Stuart, Tanovich & Dufraimont, Evidence: Principles and Problems, 14th ed. (Carswell, 2024). All syllabus page references are to this edition.
Key Tip	Print and TAB this document by Part. Your goal: find any rule within 30 seconds during the exam.

Three-Step Study Method

- **Step 1 — READ:** Work through each chapter alongside the syllabus reading pages. Understand the rule, its rationale, and how courts apply it.
- **Step 2 — RECALL:** Cover the notes. Can you state the rule, the leading case, and apply it to a hypothetical? If not — re-read.
- **Step 3 — APPLY:** Work through the NCA sample exam questions. Understand why each wrong MC answer is wrong — precision is everything.

⚠ EXAM TIP — OPEN-BOOK REALITY

Examiners know your notes are in front of you. They test analysis and application — not recitation. If your answer just describes the law without connecting it to the facts, you will not pass. Every rule statement must be followed by: 'On these facts, therefore...'

Master Evidence Analysis Framework — Apply to Every Question

Every evidentiary issue, regardless of the specific rule, requires you to answer three questions in sequence. Build this reflex.

THE THREE QUESTIONS FOR EVERY EVIDENCE ISSUE	
Q1 ADMISSIBILITY	Is the evidence admissible? Identify the applicable exclusionary rule (hearsay, character, opinion, privilege, confessions, s.276). Then determine whether an exception or the principled approach allows it in. The judge decides admissibility — in criminal cases usually on a voir dire (jury excused); in civil

	cases on a motion or preliminary ruling.
Q2 PURPOSE / USE	If admissible, for what PURPOSE can the trier of fact use this evidence? Some evidence is admissible for a limited purpose only. Example: a prior inconsistent statement admitted to impeach credibility cannot be used as proof of the facts stated (unless KGB conditions are met). You MUST flag any required limiting instruction.
Q3 WEIGHT	How much weight should the trier of fact assign? Weight is distinct from admissibility. Admissible evidence can be given little or no weight: a recanted hearsay statement, a Vetrovec witness's unsupported testimony, dock identification evidence, or a signed confession later retracted.

The Universal Evidentiary Checklist

1. Is the evidence **RELEVANT**? (Logically probative of a fact in issue.) If not → inadmissible. Stop.
2. Does an **EXCLUSIONARY RULE** apply? (Hearsay? Character? Opinion? Privilege? Confessions? s.276?) If yes → presumptively inadmissible.
3. Does an **EXCEPTION** apply? (Traditional exception? Principled approach? Statutory provision?) If yes → potentially admissible.
4. Should the judge exercise **EXCLUSIONARY DISCRETION** to exclude despite technical admissibility? (Common law: PV substantially outweighs PE? Charter s.24(2): Grant test?)
5. If admitted: what is the permitted **USE**? Is a **LIMITING INSTRUCTION** required? Must the jury be warned?
6. **CONCLUDE** and apply to the specific facts. Never end with a bare rule statement.

⚠ **EXAM TIP — CRIMINAL vs CIVIL — ALWAYS FLAG THE REGIME**

This is the single most reliable mark-gaining habit in the NCA Evidence exam. Burden of proof, W(D), spousal compellability, exclusionary discretion, Charter exclusion, admissibility of prior criminal convictions, and hearsay exceptions ALL differ between criminal and civil proceedings. State the regime first, then apply the correct rules.

PART I

INTRODUCTION TO THE LAW OF EVIDENCE

Chapter 1: The Purpose, Function, and Forum of Evidence Law

1.1 What Is Evidence Law?

Evidence law is the body of rules that governs: (1) what information may be placed before a trier of fact; (2) how that information is presented; and (3) how it may be used in reaching a decision. Every piece of information tendered in legal proceedings is subject to evidentiary rules before the trier of fact may consider it.

The law of evidence is not uniform across all proceedings. It operates differently in criminal proceedings (governed primarily by the Canada Evidence Act (CEA), the Criminal Code, the Charter, and the common law) and civil proceedings (governed by provincial evidence legislation, such as the Ontario Evidence Act, and the common law). The NCA exam tests both regimes.

1.2 The Purpose of Exclusionary Rules — Why We Exclude Evidence

The exclusionary rules are not arbitrary. Each reflects a principled reason — often multiple reasons — for keeping certain information from the trier of fact. Understanding the rationale helps you identify when each rule applies and when exceptions are justified.

EXCLUSIONARY RULE	RATIONALE FOR EXCLUSION
Hearsay	Out-of-court statements are presumptively unreliable: they were not made under oath, were not subject to cross-examination, and the trier of fact cannot assess the declarant's demeanour when making them.
Bad Character Evidence	Propensity reasoning — inferring that because someone has done bad things before they probably did the bad thing charged — is logically weak, prejudicial, and distracts the jury from the specific charge.
Opinion Evidence	The trier of fact should form its own conclusions from the facts observed. Lay and expert opinions risk usurping the jury's fact-finding function if uncontrolled.
Privilege	Certain relationships (lawyer-client, spousal) and social interests (informant protection, settlement negotiation) are so important to the administration of justice that they override the general interest in having all relevant evidence available.
Sexual Activity Evidence (s.276 CC)	The 'twin myths' — (1) prior consent implies current consent; (2) prior sexual activity makes the complainant less credible — are not rationally connected to the relevant inferences and cause serious prejudice. Parliament encoded their exclusion in s.276 CC.
Confessions obtained by oppression	Such confessions are both unreliable (the accused may have confessed falsely to stop the oppression) and undermine the integrity of the justice system.

1.3 The Adversarial Forum — How the System Shapes Evidence Law (Syllabus pp. 31–37)

Canadian courts operate on the adversarial model: two opposing parties present their cases before a neutral adjudicator. This is not merely a procedural formality — it profoundly shapes every evidentiary rule.

- **Party control:** Parties decide what evidence to tender. The judge does not gather evidence or call witnesses (except in exceptional circumstances). This makes the parties' tactical choices crucial — what is not tendered is generally not before the court.
- **Oral presentation:** Evidence is presented orally through witnesses. This makes cross-examination possible and central. The ability to test a witness's account through cross-examination is often called 'the engine of truth' — it is the primary tool for exposing unreliable evidence.
- **The jury:** Many exclusionary rules exist specifically to protect lay jurors from improperly prejudicial or unreliable evidence. In judge-alone trials, judges are presumed capable of ignoring inadmissible evidence — this affects how strictly some rules are applied and whether errors are reversible.
- **Adversarial assumption:** Each party presents its best case. The rules assume strategic, skilled advocacy. Where parties are unrepresented, courts have some flexibility — but the rules still generally apply.

The adversarial model has important limitations. Critics argue it can impede the truth-finding function because parties present only favourable evidence and may use procedural rules to exclude damaging but reliable evidence. The wrongful convictions literature points to cases where prosecutorial withholding of evidence (a violation of Stinchcombe disclosure obligations) combined with unreliable evidence (false confessions, flawed eyewitness identification) produced unjust outcomes.

⚠ EXAM TIP — CRITICAL REFLECTION QUESTIONS

The NCA syllabus specifically asks candidates to 'critically evaluate the extent to which the rules of evidence can safeguard against wrongful convictions and biased decision making.' This is not a throwaway instruction. If a short-answer question asks you to assess a rule 'critically,' you must: (1) explain the rule and its purpose; (2) identify how it CAN fail — e.g., eyewitness identification rules do not prevent juries from overvaluing unreliable identifications; (3) note any reform arguments. Flag issues of gender and racial bias where relevant.

1.4 Aboriginal Rights and Indigenous Evidence Traditions (Syllabus pp. 37–42)

The NCA syllabus explicitly covers Aboriginal rights and Indigenous evidence traditions. This topic tests your ability to recognize where mainstream evidentiary rules must be adapted in Indigenous contexts.

- Oral histories: Aboriginal oral histories — narratives passed down through generations describing the history, traditions, and land use of a community — are admissible in claims involving Aboriginal rights under s.35 of the Constitution Act, 1982. Courts may not apply Eurocentric evidentiary standards (e.g., the hearsay rule applied in its traditional form) to dismiss oral histories as inherently unreliable.
- The problem of rules designed for a European legal tradition: The common law of evidence developed in the context of written records, professional witnesses, and English legal assumptions. Aboriginal communities often have no written records of their pre-contact land use, relying instead on oral transmission. Strict application of the hearsay, opinion, and best evidence rules could make proof of Aboriginal title practically impossible.
- Judicial adaptation: Courts must adapt their approach to weigh oral history evidence appropriately, neither accepting it uncritically nor rejecting it because it does not fit a European evidentiary mould. The focus is on the characteristics of the oral tradition: consistency, internal coherence, corroboration by archaeology or historical records, and the care with which the community preserves and transmits its history.
- Standard of proof: The standard of proof for Aboriginal rights claims remains the balance of probabilities. However, courts must be sensitive to the evidentiary challenges Aboriginal peoples face in establishing pre-contact practices — the rules should not be used to set an impossible evidentiary burden.

Delgamuukw v British Columbia [1997] 3 SCR 1010

Oral histories are admissible in Aboriginal title claims. The courts must adapt the rules of evidence to give full and fair weight to s.35 rights. The strict application of the hearsay rule and the opinion rule would make proof of Aboriginal title virtually impossible and would not give effect to the reconciliation purpose of s.35. The trial judge's wholesale rejection of the oral history evidence was an error — he applied the rules of evidence developed for a 'very different world' without appropriate modification.

Mitchell v MNR [2001] 1 SCR 911

Confirms the Delgamuukw approach: oral history evidence must be 'put into its proper context.' The court must understand and assess the evidence in light of the social and cultural context in which it was created and preserved. This does not mean anything goes — courts still assess reliability, but within the context of the Indigenous tradition, not against it.

⚠ EXAM TIP — WHEN INDIGENOUS EVIDENCE IS TESTED

If your fact pattern involves an Aboriginal rights or title claim, immediately flag: (1) oral history evidence is admissible; (2) the court must adapt evidentiary rules; (3) cite *Delgamuukw*. If asked about 'critical reflection' on evidence rules and bias, flag how rules designed for European legal traditions can systematically disadvantage Indigenous claimants and how courts must be aware of this.

PART II

STRUCTURAL ELEMENTS OF THE LAW OF EVIDENCE

Chapter 2: Burden and Standard of Proof

Burden and standard of proof is one of the highest-yield topics on the NCA Evidence exam. Multiple choice questions and short-answer questions regularly test: who bears each burden, what the applicable standard is, how they interact with credibility assessment via W(D), and how civil and criminal standards differ.

2.1 The Two Types of Burden

BURDEN TYPE	DEFINITION AND OPERATION
Evidential Burden (Air of Reality)	The obligation to point to sufficient evidence to put an issue 'in play' at trial. This is not a burden of proof in the formal sense — it does not require the party to persuade the trier of fact. It merely requires that there be sufficient evidence that, if believed, a reasonable jury could give effect to the defence or issue. If there is no air of reality to a defence, the judge will not put it to the jury. Example: for a defence of provocation, there must be some evidence that the accused was actually provoked before the judge must put the issue to the jury.
Persuasive Burden (Legal Burden)	The obligation to actually prove a fact to the required standard of proof. This is the 'real' burden — the one that determines who wins. In a criminal case, the Crown bears the persuasive burden to prove every element of the offence beyond a reasonable doubt. Failure to discharge the persuasive burden means the party bearing it loses on that issue.

2.2 The Criminal Standard — Beyond a Reasonable Doubt (BARD)

The Crown bears the legal burden of proving each element of the offence beyond a reasonable doubt. This flows from the presumption of innocence guaranteed by s.11(d) of the Charter.

R v Lifchus [1997] 3 SCR

The definitive instruction on what 'reasonable doubt' means. A